

25STCV34697 25STCV34697

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C08%2F21%2F2026

Source SHA-256: 19916c467144a22ea0e738df09f576e0c3dc0588292745e218f38ebfd9808135

Case Number: 25STCV34697 Hearing Date: August 21, 2026 Dept: 734

Plaintiff

tenant alleges that Defendant purchasers of the residential property which Plaintiff rented engaged in various activities to force Plaintiff to vacate the property.

Defendants

McCarty Memorial Christian Church Of Los Angeles, Edward Anderson, Brockman Quayle Bennett LLP, And Richard H. Quayle, IV demur to the First Amended Complaint.

TENTATIVE RULING

Defendants

McCarty Memorial Christian Church Of Los Angeles, Edward Anderson, Brockman Quayle Bennett LLP, And Richard H. Quayle, IV's demurrer to the First Amended Complaint is OVERRULED as to the first, second, third, fourth and sixth causes of action and SUSTAINED without leave to amend as to the seventh, eighth, ninth, tenth and eleventh causes of action.

Defendants are to answer the remaining allegations of the First Amended Complaint within 10 days.

ANALYSIS

Robert H. Quayle, IV

Request For Judicial Notice

Plaintiff

requests that the Court take judicial notice of the following:

(1) EXHIBIT A: The Secretary of State

"No Record" Administrative Rejection Letter; (2) EXHIBIT B: The Official California Secretary of State Active Registration Profile; (3) EXHIBIT C: The Property Deed from the County Recorder's Office; (4) EXHIBIT D: The Prior Unlawful Detainer Jury Verdict and Rent Reduction Order; (5) EXHIBIT E: The Court Minute Order Denying the Permanent Restraining Order.

Requests

No. 1 and 2 are GRANTED as these are records of the Secretary of State.

The courts also take judicial notice of the acts

and records of the Secretary of State, and it is not necessary to submit proof that a document has been filed with him to establish such fact. (Citations omitted.)

Although it is both permissible and desirable that a court be furnished with a certified copy of a record or regulation of which it is asked to take judicial knowledge, to aid it in obtaining actual knowledge of the contents thereof (citations omitted), the failure to furnish such does not foreclose an exercise of the court's authority to take judicial notice of the record or regulation in question. ([*607] Citation omitted.) There is no contention herein that the subject regulations have not been adopted by the State Department of Social Welfare, or that certified copies thereof have not been filed with the Secretary of State.

(People v. Haugh (1963) 216 Cal.App.2d 603, 606-07.)

Request

No. 3[1]

is GRANTED. The Court may take judicial

notice of recorded documents. (Evans v.

California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549, overruled on

other grounds in Black Sky Capital, LLC v. Cobb (2019) 7 Cal.5th 156, 165; Alfaro v. Community Housing Improvement System &

Planning Assn., Inc. (2009) 171 Cal.App.4th 263, 274).

Requests Nos. 4 and 5 are

GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The

Declaration of Robert H. Quayle, IV reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

The Court notes that Defendants' opening brief spans 25 pages of content. For motions that are not for summary judgment or summary adjudication, CRC Rule 3.1113 sets forth a 15-page limit on points and authorities in support of or in opposition to motions, and a 10-page limit on reply memoranda, unless the party applies for an application to file a longer memorandum, which did not occur here. (Cal. Rules of Court, Rule 3.1113(d) & (e)). A memorandum filed in excess of the page limits "must be filed and considered in the same manner as a late-filed paper." (Cal. Rules of Court, Rule 3.1113(g).) The Court has discretion to disregard a late-filed brief. (Cal. Rules of Court, Rule 3.1300(d).) Accordingly, while the Court could completely disregard the entirety of the brief, instead, the Court will only read the first 15 pages of the moving points and authorities.

As limited to the first 15 pages (and part of the 16th page to complete the statute of limitations argument as to the eleventh cause of action), Defendants McCarty Memorial Christian Church Of Los Angeles, Edward Anderson, Brockman Quayle Bennett LLP, And Richard H. Quayle, IV demur to the First Amended Complaint as follows:

1. First, Second, Third, Fourth, Sixth[2], Seventh, Eighth, Ninth, Tenth, and Eleventh Causes of Action are Time-Barred by Their Applicable Statutes of Limitations.

Defendant argues that Plaintiff's claims are time-barred because the facts pled occurred between March 4, 2020 and November 27, 2023. The Complaint in this action was filed on December 1, 2025.

Defendant argues that the only date listed beyond that is the May 27, 2025 trial date related

to the 2020 Complaint, which adjudicated on the merits all of Plaintiff's remaining causes of action deemed viable following several sustained demurrers, which arose from a time period encompassing March 4, 2020 and November 27, 2023.

Plaintiff

argues that the statute of limitations on Plaintiff's fraud claim accrued last week upon actual discovery of the bogus entity. Under CCP §338(d), the statutory clock for an action grounded in fraud or mistake does not begin to run until the aggrieved party discovers the facts constituting the fraud. Here, Defendant Brett Daniels' Nephew, Defendant Jeremy Michael Daniels-Stock prosecuted legal actions against Plaintiff under the name "Nola Investment Solutions LLC a California LTD. Liability Company". Plaintiff was led to believe this was a legitimate, registered California entity. It was not. Until last week when Plaintiff received official confirmation from the California Secretary of State portal that no such California entity exists and that the true buyer was a foreign LLC "Nola Investment Solutions LLC a Louisiana Ltd. Liability Company."

Plaintiff

also argues that the continuous accrual doctrine stops the statute of limitations from running until the last overt act of harassment. Under California's doctrine of continuous accrual; a new statutory period begins to run with each separate, distinct, and ongoing violation in a series of continuous wrongs (*Aryeh v. Canon Business Solutions, Inc* (2013) 554 Cal.4th 1185, 1192). Under TAHO, the three-year statute of limitations runs from the date of the last overt act in an ongoing campaign of tenant displacement. Here, bad-faith harassment did not stop in the past; rather it has been a continuous course of conduct executed by the same coordinated actors to validate their predatory real estate flip. Because the face of the complaint alleges a continuous pattern of ongoing harassment extending well into the statutory window, the entire pattern of TAHO violations is perfectly timely.

Plaintiff

also argues that a demurrer cannot be sustained on statute of limitations grounds unless the bar clearly appears on the face of the complaint. Plaintiff argues that the face of the Complaint alleges severe bad-faith tenant harassment and newly discovered corporate identity fraud taking place well within the statutory windows.

A. First Cause of Action for Civil Conspiracy.

Defendant

argues that there is no statute of limitations for conspiracy, so Plaintiff's allegation

of a “continuing conspiracy” does not avoid the statute of limitations bar.

Here, Plaintiff’s cause of action based on personal injury

is subject to a 2-year statute of limitations period and is thus barred as untimely.

“Conspiracy is not a cause of action, but a legal doctrine

that imposes liability on persons who, although not actually committing a tort themselves,

share with the immediate tortfeasors a common plan or design in its perpetration.

... [¶] Standing alone, a conspiracy does [*955] no harm and engenders no tort liability. It must

be activated by the commission of an actual tort.” (Citation omitted.) “A conspiracy

cannot be alleged as a tort separate from the underlying wrong it is organized to

achieve.” (Citation omitted.)

(Moran v. Endres

(2006) 135 Cal.App.4th 952, 954-55.)

Moreover:

A demurrer based on a statute of limitations

will not lie where the action may be, but is not necessarily, barred. (Citation

omitted.) In order for the bar of the statute of limitations to be raised by demurrer,

the defect must clearly and affirmatively appear on the face of the complaint; it

is not enough that the complaint shows that the action may be barred. (Citation

omitted.)

(Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.

App. 4th 1397, 1403.)

Here,

the statute of limitations bar does not lie to conspiracy which is not a cause of

action. Moreover, the dates relevant to the conspiracy are not identified other

than that there has been a conspiracy that has persisted beyond July 2023. (1AC,

¶ 203.) The statute of limitations bar does not affirmatively appear on the face

of the 1AC. Defendants will have to ascertain exact dates via discovery.

The

demurrer to the first cause of action is OVERRULED.

B. Second Cause of Action (Breach of the

Implied Warranty of Habitability — Civil Code § 1941.1).

Defendants

argue that the 1AC does not specify the dates or times in her Second Cause of Action Argument, but Defendants infer from her Introduction that this is in reference to alleged events that took place between 5/22/23 and 6/30/23. (See: 2026 FAC, page 15, ¶ 109.) The implied warranty of habitability code section Plaintiff relies upon is a broad tenant protection statute that does not contain a specific statute of limitations period; thus, the applicable statute of limitations is determined by Civil Code § 343.10 [there is no Civil Code § 343.10, so the Court assumes the reference is meant to Code Civ. Proc. § 343], which generally provides for a four-year statute of limitations for claims arising from an alleged violation of § 1940.2. There are exceptions to this general rule, however, and because Plaintiff's claim is based in tort law, this cause of action is subject to a 2-year statute of limitations period under Civil Code § 343.10 and is thus barred as untimely.

Defendants

concede that the four-year statute of limitations set forth in Code Civ. Proc. § 343 applies—measured from May 2023 to June 2023.

Code

Civ. Proc. § 343 provides:

An action for

relief not hereinbefore provided for must be commenced within four years after the cause of action shall have accrued.

However,

the more applicable statute of limitations appears to be the three-year statute of limitations set forth in Code Civ. Proc. § 338(a) applicable to an action upon a liability created by statute, other than a penalty or forfeiture. Even under a three-year statute of limitations, this action was timely filed on December 1, 2025 measured from May 2023 to June 2023.

Defendants

argue that there are exceptions to this general rule, however, and because Plaintiff's claim is based in tort law, this cause of action is subject to a 2-year statute of limitations period under Civil Code § 343.10. First, there is no Civil Code § 343.10, nor even a Code Civ. Proc. § 343.10. Second, Defendants do not cite authority for application for such exception, nor explain why it applies in this instance.

This

ground for demurrer is not persuasive.

The

demurrer to the second cause of action is OVERRULED.

C. Third Cause of Action (Breach of the Covenant of Quiet Enjoyment — Civil Code § 1927).

Defendants

argue that the 1AC does not specify the dates or times in her Third Cause of Action Argument, but Defendants infer from her Introduction that this is in reference to alleged events that took place between 5/22/23 and 6/30/23. (See: 2026 FAC, pages 14-16.) The covenant of quiet enjoyment code section Plaintiff relies upon is a broad tenant protection statute that does not contain a specific statute of limitations period; thus, the applicable statute of limitations is determined by California Civil Code § 343.10, which generally provides for a four-year statute of limitations for claims arising from an alleged violation of § 1940.2 [or § 1927]. There are exceptions to this general rule, however, and because Plaintiff's claim is based in tort law, this cause of action is subject to a 2-year statute of limitations period under Civil Code § 343.10 and is thus barred as untimely.

The

Court incorporates by reference its discussion above re: the second cause of action. For those same reasons, the demurrer to the third cause of action is OVERRULED.

D. Fourth Cause of Action (Violation of Los

Angeles Tenant Anti-Harassment Ordinance (TAHO) (LAMC §§ 45.30 et seq. / Civil Code § 1940.2).)

Defendants

argue that Plaintiff alleges that other named defendants engaged in bad-faith harassment in violation of LAMC § 45.30 by “filing a false action based on fabricated assault claims to coerce a vacancy,” interfering with her quiet enjoyment, “filing false eviction actions,” and that the “dominant motive for this harassment was to force the Plaintiff to vacate so Defendants could ‘flip’ the property for higher market-rate profits during the COVID-19 pandemic.” (See: 2026 FAC, pages 27-29.) Under the Los Angeles Municipal Code (LAMC) § 45.30[3], the statute of limitations for claims under the Tenant Anti-Harassment Ordinance (TAHO) is generally two years from the date the cause of action accrues. If the harassment leads to a wrongful eviction, the statute of limitations is three years. Here, a 2022 Unlawful Detainer action

(22STUD0699) resulted in a court order for Plaintiff to vacate the property; thus, there was no finding of wrongful eviction. The 1AC does not specify the dates or times in her Fourth Cause of Action

Argument, but Defendants infer from her Introduction that this is in reference to alleged events that took place between August 16, 2022 and either September 7, 2023 or November 27, 2023. (See: 2026 FAC, pages 12-14.) Either way, Plaintiff's cause of action is subject to a 2-year statute of limitations period under LAMC § 45.30 and is thus barred as untimely.

Under LAMC § 45.35, Plaintiff seeks Triple (Treble) Damages for mental and emotional distress. Civil Penalties \$10,000 per violation. Attorney's Fees and costs. LAMC § 45.35(G) provides for a three year statute of limitations.

The conduct on which this cause of action is based is as follows:

1AC,
¶ 228:

Defendants engaged in bad-faith harassment in violation of LAMC § 45.33 by:

1. Filing a false action based on fabricated assault claims to coerce a vacancy.
2. Interfering with quiet enjoyment through a 47-day "power-blasting" campaign that saturated the home with toxic lead dust.

1AC,
¶ 236: "Using Fraud and Misrepresentation by coordinating with a loan broker to bring false assault charges in a judicial proceeding."

It appears the underlying allegations regarding this false assault charge is pled at ¶¶ 101 and 102 of the 1AC as follows:

101. On

September 7, 2023, was the date Defendants Daniels-Stock and Arujo filed against Plaintiff, a permanent restraining order, alleging Plaintiff ordered her daughter and her next-door neighbor on the morning of August 16, 2022, to physical assault Defendant Arujo, resulting in her suffering two surgeries and six months of physical therapy to relearn how to walk.

102. On

November 27, 2023, after the bench trial, the sitting Judge ruled in Defendant's favor and dismissed the case citing in part "...there's nothing here that would constitute violence, threats of violence, or a course of conduct that would seriously alarm, annoy, and harass a reasonable person. Case #23CHR001672, Exhibit 8. Pages 57-58

As

to the "power-blasting" campaign that saturated the home with toxic lead dust, ¶¶ 109 – 118 allege:

109. On or

about May 21, 2023, Defendant Daniels-Stock asked Plaintiff if his crew could use her electricity to power the batteries on the power tools they will be using to power blast the current exterior paint off the exterior structure, so his crew could repaint with new paint.

110. Plaintiff

said no, explaining the structure was built in 1910 and Plaintiff was sure the existing paint was lead paint.

111. Plaintiff

observed Defendant Daniels-Stock, walk from the apartment building entrance to CEO Anderson's 11th Avenue office entrance—a walk of less than one minute.

112. Plaintiff

is informed and believes, and thereon alleges that Defendant CEO Anderson wasn't in his office, but Daniels-Stock and Anderson spoke on the phone, and it was at that time, Anderson gave Daniels-Stock permission to use MMCC's electricity

113. Nola Investment

Solutions, LLC's crew used MMCC's electricity the entire time they power blasted paint off the structure's exterior.

114. On July

3, 2023, Plaintiff retained the services of Quantum Environmental Testing, Inc. to conduct a professional lead hazard assessment of the Subject Property.

115. The purpose

of this inspection was to collect and analyze samples of paint chips and settled dust that had accumulated on the lawn, porch, exterior garbage receptacles, and the primary entry doorway as a direct result of the uncontained power blasting conducted by Defendants' agents.

116. On July

7, 2023, Plaintiff received the "Limited Lead-Based Paint Chip Inspection Report" from Quantum Environmental Testing, Inc. (the "Report").

117. The Report

confirmed the presence of hazardous materials, stating: "The laboratory results indicate Lead-Based Painted Surfaces (LBPs) and/or Lead-Containing Paint (LCPs) and or Materials were identified in the area(s) of proposed disturbance." A true and correct copy of this Report is attached hereto as Exhibit 11 and incorporated by reference.

118. Following

the receipt of the Report, Plaintiff suffered, and continues to suffer, severe emotional distress and physical anxiety due to the confirmed presence of lead-based toxins in the immediate living environment.

(1AC, ¶¶ 109 – 118 [bold emphasis added].)

In

that all of the above conduct occurred in 2023, the Complaint in this action was filed on December 1, 2025, which is timely under the three-year statute of limitations set forth in LAMC § 45.35(G). This cause of action is not time-barred.

The

demurrer to the fourth cause of action is OVERRULED.

E. Sixth Cause of Action (Violation of California Civil Code § 1940.2).

Defendants

argue that Plaintiff alleges that defendants violated this statute by “intentionally exposing a disabled adult child to toxic lead dust and weaponizing the daughter’s professional credentials through false allegations of violence.” (See: 2026 FAC, page 30, ¶ 252.) Plaintiff includes the many ways in which she and her daughter suffered personal injury due to these allegations, including loss of sleep, panic attacks, extreme emotional suffering, etc. The 1AC does not specify the dates or times in Plaintiff’s Sixth Cause of Action Argument, but Defendants infer from her Introduction that this is in reference to alleged events that took place between 5/22/23 and 6/30/23. (See: 2026 FAC, pages 14-16.) The civil code section Plaintiff relies upon is a broad tenant protection statute that does not contain a specific statute of limitations period; thus, the applicable statute of limitations is determined by California Civil Code § 343.10, which generally provides for a four-year statute of limitations for claims arising from an alleged violation of § 1940.2. There are exceptions to this general rule, however, and because Plaintiff’s claim is based in tort law, this cause of action is subject to a 2-year statute of limitations period under Civil Code § 343.10 and is thus barred as untimely.

The

Court incorporates by reference its discussion above re: the second cause of action. For those same reasons, the demurrer to the sixth cause of action is OVERRULED.

F. Seventh Cause of Action (Negligence and Negligence Per Se).

Defendant

argues that the 1AC does not specify the dates or times in Plaintiff’s Seventh Cause of Action Argument, but Defendants infer from her Introduction that this is in reference to alleged events that took place in 2022. (See: 2026 FAC, pages 14-16.) Plaintiff’s negligence cause of action is subject to a 2-year statute of limitations period and is thus barred as untimely.

This

cause of action is based upon the following allegations:

256. Defendant

CARLA ARILA SILVA ARAUJO self-identified as the contractor responsible for the exterior renovation and power-blasting of the premises. As a contractor and agent for the owners, she owed a duty of care to Plaintiff to perform such work in a safe, professional manner that complied with all health and safety regulations.

257. Under California

Health and Safety Code § 17920.10, it is a violation of law to disturb lead-based paint without following specific lead-safe work practices. Under Negligence Per Se, Defendant Araujo's violation of this statute constitutes a breach of her duty of care as a matter of law.

258. Defendants

personally directed and/or authorized a 47-day power-blasting campaign without proper containment, HEPA vacuuming, or notification to the tenants.

. . .

266. As a direct

result, Plaintiff and her child were exposed to toxic lead dust, causing severe physical risk and extreme mental anguish.

(1AC, ¶¶ 256 – 258, 266.)

As

discussed above, the foregoing occurred no later than July 7, 2023, when Plaintiff learned of the lead report results. (1AC, ¶¶ 109 – 118.) The two-year statute of limitations for personal injury, set forth in Code Civ. Proc. § 335.1 applies. The Complaint in this action was not filed until December 1, 2025. This cause of action is time-barred.

The

demurrer to the seventh cause of action is SUSTAINED without leave to amend.

G. Eighth Cause of Action (Malicious Prosecution).

Defendants

argue that Plaintiff alleges that she was maliciously prosecuted by defendants other than MMCC and Anderson, but has filed a malicious prosecution claim against all defendants in this action nonetheless. The latest date referenced in her Complaint is November 27, 2023, the date of a bench trial involving a permanent restraining order and not involving Defendants MMCC or Anderson. There is no other event or date beyond that in which Plaintiff asserts malicious prosecution. Plaintiff's malicious prosecution cause of action is subject to a 2-year statute of limitations period and is thus barred as untimely. (Code Civ. Proc., § 430.10, subd. (a)).

The

1AC alleges as follows:

274. Defendants

initiated or “instigated” Case No. 23CHR001672 against Plaintiff without probable cause. Defendants knew the allegations of violent assault were false and had no reasonable basis to believe a crime had occurred.

275. Defendants

acted with malice, intending to harm Plaintiff's reputation and cause the revocation of her daughter's teaching credentials.

276. The prior

action terminated in Plaintiff's favor on November 27, 2023, when the court ruled that the allegations were not believable.

277. As a result,

Plaintiff suffered severe emotional distress, and reputational harm.

(1AC, ¶¶ 274 – 277 [bold emphasis added].)

The

elements of a malicious prosecution cause of action were complete on November 27, 2023.

“To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff's, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice [citations].” (Citation omitted.)

(Lanz v. Goldstone (2015) 243 Cal.App.4th 441, 458.)

The two-year statute of limitations

period set forth in Code Civ. Proc. § 335.1 applies to malicious prosecution claims.

(Escamilla v. Vannucci (2025) 17 Cal.5th 571, 578.) The Complaint in this

action was not filed until December 1, 2025. As such, this cause of action is time-barred.

The demurrer to the eighth cause of

action is SUSTAINED without leave to amend.

H. Ninth Cause of Action (Abuse of Process).

Defendants

argue that Plaintiff alleges that by allegedly recruiting a loan broker to “validate false testimony,” defendants improperly “used the ‘judicial machinery’ for an ulterior purpose for which it was not designed.” (See: 2026 FAC, page 32, ¶ 279.) It is unclear what specific time period Plaintiff is referencing, but Plaintiff references Case No. 23CHR001672, a restraining order action, the final order of which was rendered during a bench trial on November 27, 2023. Plaintiff’s cause of action is subject to a 2-year statute of limitations period and is thus barred as untimely.

The two-year statute of limitations

period set forth in Code Civ. Proc. § 335.1 applies to abuse of process claims. (Cantu v. Resolution Trust Corp. (1992) 4 Cal. App. 4th 857, 886-87 [applying former one-year statute of limitations applicable to personal injury claims].)

279. Defendants

utilized the “judicial machinery” for an ulterior purpose for which it was not designed.

280 The primary

purpose of Case No. 23CHR001672 was not to seek justice for an assault, but to extort a vacancy and harass the Plaintiff into moving out.

281. Defendants

committed a willful act in the use of the process—recruiting a loan broker to validate false testimony—that was improper in the regular conduct of a legal proceeding.

282. As a direct

result, Plaintiff suffered damages, including the 90-day “terror” period.

(1AC, ¶¶

280 – 282.)

The common law tort of abuse of process arises

when one uses the court’s process for a purpose other than that for which the process was designed. (Citations omitted.) It has been “interpreted broadly to encompass the entire range of ‘procedures’ incident to litigation.” (Citation omitted.)

“[T]he essence of the tort [is] ... misuse of the power of the court; it is an act done in the name of the court and under its authority for the purpose of perpetrating an injustice.” (Citation omitted.) To succeed in an action for abuse of process, a litigant must establish that the defendant (1) contemplated an ulterior motive in using the process, and (2) committed a willful act in the use of the process not proper in the regular conduct of the proceedings. (Citation omitted.)

(Rusheen v. Cohen
(2006) 37 Cal.4th 1048, 1056-57.)

As discussed above re: the eighth cause of action Case No. 23CHR001672 was terminated in Plaintiff’s favor on November 27, 2023. (1AC, ¶ 276.)

The Complaint in this action was not filed until December 1, 2025. As such, this cause of action is time-barred.

The demurrer to the ninth cause of action is SUSTAINED without leave to amend.

I. Tenth Cause of Action (Conspiracy To Commit Extrinsic Fraud (fraud on the court)).

Defendants

argue that Plaintiff attempts to include undersigned defendants BQB and Quayle in her conspiracy theory, using the May 27, 2025 trial date to skirt her obvious statute of limitations problem by stating that “the final overt act” of the alleged conspiracy occurred on that date, when undersigned counsel – in his capacity as legal counsel for MMCC and Anderson at trial – allegedly “knowingly presented a false ‘Statement of the Case’” and thus a “fraud on the court.” (See: 2026 FAC, page 22, ¶ 181.) She further states that “Defendants have doubled down. In their [March] 2026 Demurrer, they again cited this nonexistent “final finding” to assert Res Judicata. This demonstrates a continuous, willful pattern of using court filings to perpetuate a fraud.” (See: 2026 FAC, page 24, lines 12-15.) However, the only claim she makes in her argument under her “Tenth Cause of Action” heading rests on allegations that there was a “Civil Conspiracy to commit extrinsic fraud (fraud on the court) [resulting in her] wrongful eviction / displacement.” (2026 FAC, page 32, ¶ 284.) Though the facts in her argument are not pled with sufficient particularity, Plaintiff seemingly asserts in her civil conspiracy claim that multiple defendants, including MMCC and

Anderson, entered into a knowing and intentional agreement to engage in a “constructive eviction” scheme, beginning during the early days of the COVID-19 pandemic in 2020 and running through the November 27, 2023 trial date. Her attempt to use the fact that undersigned counsel introduced a judicially noticed document at the May 27, 2025 trial as evidence that BQB and Quayle were knowingly continuing the conspiracy by perpetrating a “fraud on the court” does not amount to a “last overt act” for purposes of the tolling of a statute of limitations on this cause of action, even if it were true (which it is not): While Plaintiff correctly directs attention to the fact that the statute of limitations does not begin to run until the “last overt act” of a conspiracy has been completed, what she fails to consider is that in California, there is no specific statute of limitations for civil conspiracy; rather, the statute of limitations for each underlying tort will control. Even if Plaintiff were able to meet each element of a civil conspiracy claim (which she cannot do), the time has long since tolled for each of her underlying causes of action. To the extent that Plaintiff’s claims are based on personal injury and common neglect, Plaintiff’s claims are time-barred under a two-year statute of limitations.

This cause
of action is based upon the following allegation:

284. Civil Conspiracy

to commit extrinsic fraud (fraud on the court) that resulted in wrongful eviction/displacement. Plaintiff asks for a combination of actual, special, and punitive damages, along with potential treble damages if the fraud qualifies as theft under California Penal Code § 496(c).

(1AC, ¶ 284.)

However,
Plaintiff does not have standing to assert a private cause of action for fraud on the court. While extrinsic fraud is a basis for voiding a judgment[4], this situation is not presented in this case.

The
Court finds that the statute of limitations argument is moot because there is no cause of action for civil conspiracy to commit extrinsic fraud upon the court.

The
demurrer to the tenth cause of action is SUSTAINED without leave to amend.

J. Eleventh Cause of Action (Intentional Infliction of Emotional Distress).

Defendants

argue that Plaintiff alleges that for a “period of 90 days, defendants pursued a campaign of high stakes terror,” acted with reckless disregard for the “catastrophic consequences” of filing a temporary restraining order against Plaintiff and her adult disabled child, and that as a direct result, Plaintiff “suffered severe emotional distress.” Plaintiff’s IIED cause of action is subject to a 2-year statute of limitations period and is thus barred as untimely.

As noted by

Defendants, this cause of action is based on the allegation that:

For a period of

90 days, Defendants pursued a campaign of high-stakes terror. Specifically, Defendants fabricated a narrative that Plaintiff ordered her disabled daughter and a neighbor to commit a violent assault against the owner’s family member.

(1AC, ¶ 287.)

As

discussed above, this occurred no later than November 27, 2023, when Case No. 23CHR001672 was ordered terminated because the court ruled that the allegations of violent assault were not believable. (1AC, ¶¶ 274, 276.)

Causes of action for intentional infliction

of emotional distress are governed by the two-year statute of limitations set forth in Code Civ. Proc., § 335.1. (Pugliese v. Superior Court (2007) 146 Cal.App.4th 1444, 1450.) Because the Complaint in this action was not filed until December 1, 2025, this cause of action is time-barred.

The demurrer to the eleventh cause of action is SUSTAINED without leave to amend.

As

noted, the Court will not address the remaining arguments as they are presented beyond the 15-page limit.

Defendants

are to answer the remaining allegations of the First Amended Complaint within 10 days.

[1] The

Court notes that this copy does not reflect that it has been recorded. The Court assumes a recorded copy could be produced if necessary.

[2] The 1AC

does not contain a fifth cause of action.

[3] LAMC §

45.30 does not contain a two-year statute of limitations.

[4]

Extrinsic fraud is a broad concept that tends to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. (Citations omitted.) Generally, it arises when one party has in some way fraudulently been prevented from presenting his or her claim or defense. (Citations omitted.) "No abstract formula exists for determining whether a particular case involves extrinsic, rather than intrinsic, fraud. 'It is necessary to examine the facts in the light of the policy that a party who failed to assemble all his evidence at the trial should not be privileged to relitigate a case, as well as the policy permitting a party to seek relief from a judgment entered in a proceeding in which he was deprived of a fair opportunity fully to present his case.' [Citation.]" (Citation omitted.) Extrinsic fraud includes a false promise of compromise that induces a party to act or refrain from acting in such a way as to deprive that party of a fair opportunity to litigate his or her case. (Citation omitted.) A finding of extrinsic fraud does not require that a party actually be physically prevented from appearing at a conference or hearing, as long as the fraudulent promise to settle or drop a litigated matter causes the party to forego an opportunity to prosecute or contest a case, or to be deprived of a fair hearing. (Citations [*775] omitted.)

(Estate of Beard (1999) 71

Cal.App.4th 753, 774-75.)